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File No.: EXP202209861

RESOLUTION OF TERMINATION OF THE PROCEDURE DUE TO VOLUNTARY PAYMENT

From the procedure initiated by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: On October 24, 2023, the Director of the Spanish Agency for Data Protection decided to initiate sanctioning proceedings against FIBRA ÓPTICA MÁLAGA, S.L. (hereinafter, the respondent), by means of the Agreement that is transcribed:

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File No.: EXP202209861

AGREEMENT TO INITIATE SANCTIONING PROCEEDINGS

From the actions taken by the Spanish Agency for Data Protection and based on the following

FACTS

FIRST: Mr. A.A.A. (hereinafter, the claimant) filed a complaint with the Spanish Agency for Data Protection on August 5, 2022. The complaint is directed against FIBRA ÓPTICA MÁLAGA, S.L. with NIF B90181801 (hereinafter, FIBRA). The reasons for the complaint are as follows:

The respondent has consented to the change of the contact email address and the bank account requested by a third party, specifically by the ex-partner of the claimant, without their consent.

Along with the complaint, the claimant submitted a police report, a complaint filed with FIBRA, and the contract to prove their ownership.

Additionally, they provided communication from the respondent confirming that in July 2022, the claimant's ex-partner took over the payment for the services contracted, justifying the attention to the request for a change of bank account by the third party referred to by the possibility provided in the Civil Code to take on another's debt.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and the Guarantee of Digital Rights (hereinafter LOPDGDD), the complaint was forwarded to FIBRA, so that they could analyze it and inform this Agency within one month of the actions taken to comply with the requirements established in the data protection regulations.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP) by means of electronic notification, was not collected by the responsible party within the availability period, being understood as rejected in accordance with the provisions of Article 43.2 of the LPACAP on October 3, 2022, as stated in the certificate in the file.

Although the notification was validly carried out by electronic means, considering the procedure completed in accordance with the provisions of Article 41.5 of the LPACAP, an informational copy was sent by postal mail, which was duly notified on October 19, 2022. In this notification, they were reminded of their obligation to interact electronically with the Administration, and were informed of the means of access to such notifications, reiterating that, henceforth, they would be notified exclusively by electronic means.

THIRD: On November 5, 2022, in accordance with Article 65 of the LOPDGDD, the complaint filed by the claimant was admitted for processing.

FOURTH: The General Subdirectorate of Data Inspection proceeded to carry out preliminary investigative actions to clarify the facts in question, by virtue of the functions assigned to the control authorities in Article 57.1 and the powers granted in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions established in Title VII, Chapter I, Section Two, of the LOPDGDD, being aware of the following aspects:

The representatives of the entity state that the procedure established for changing the contact and billing data of a customer is the in-person communication of the account holder or an authorized person at the offices of FIBRA ÓPTICA MÁLAGA, located at ***ADDRESS.1.

The security measures implemented consist of the in-person verification of the identity of the account

holder by presenting an identification document.

In the case of an authorized person, a signed document of express authorization is also requested, which must include a copy of the ID of the account holder and the ID number of the authorized person, requesting the presentation of the document to the authorized person.

In the case of modification of the bank account, the presentation of a document proving the ownership of the account is required.

Regarding the reason for the modification of the email and billing account of the claimant, the representatives of the entity indicate that the person who requested the change was the person identified and known as the spouse of the account holder. In an excess of trust, as it was a person known to the...

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Customer service personnel were not required to present the authorization document at that time, urging the person to submit it in the following days, which did not occur at any later time.

FIFTH: According to the report collected from the AXESOR tool, the entity FIBRA ÓPTICA MÁLAGA, S.L. is a small company established in 2015, with a turnover of 1,287,782 euros in 2022.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the guarantee of digital rights (hereinafter, LOPDGDD), the Director of the Spanish Data Protection Agency is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Data Protection Agency shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development, and, to the extent that they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Obligation Breached

Article 4 of the GDPR, under the heading "Definitions," provides the following:

"1) 'personal data': any information relating to an identified or identifiable natural person ('the data subject'); an identifiable natural person is one who can be identified, directly or indirectly, in particular by reference to an identifier, such as a name, an identification number, location data, an online identifier, or one or more specific elements of the physical, physiological, genetic, mental, economic, cultural, or social identity of that natural person;

2) 'processing': any operation or set of operations performed on personal data or sets of personal data, whether or not by automated means, such as collection, recording, organization, structuring, storage, adaptation or alteration, retrieval, consultation, use, disclosure by transmission, dissemination, or otherwise making available, alignment or combination, restriction, erasure, or destruction."

7) 'data controller' or 'controller': the natural or legal person, public authority, agency, or other body that, alone or jointly with others, determines the purposes and means of the processing; if the law of the Union or of the Member States determines the purposes and means of processing, the data controller or the...

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specific criteria for their appointment may be established by Union Law or by the laws of the Member

States.”

In this regard, it should be noted that FIBRA is responsible for the processing of personal data and, therefore, determines the purposes and means of processing personal data.

III

Article 6.1 of the GDPR

Article 6 of the GDPR establishes, regarding the lawfulness of the processing of personal data obtained from users, that such processing shall be lawful only if at least one of the conditions set out in its first paragraph is met, among which, in paragraph a), is: “the data subject has given consent to the processing of their personal data for one or more specific purposes (...)”.

Regarding the processing of data based on the consent of the data subject, Article 7 of the GDPR indicates that the data controller must be able to demonstrate that the data subject has consented to the processing of their personal data. If consent is given in the context of a written declaration that also refers to other matters, it must be ensured that the request for consent is clearly distinguishable from other matters and presented in an intelligible, easily accessible manner, using clear and plain language. Additionally, the data subject must be provided with further information, including, among others, what categories of data will be processed, the purposes for which consent is sought, and the right to withdraw consent at any time.

Regarding the manner of obtaining the consent of the data subject for the processing in question, Recital 32 of the GDPR states that consent “must be given by a clear affirmative act that reflects the data subject's free, specific, informed, and unambiguous indication of their wishes to accept the processing of personal data concerning them” and that “silence, pre-ticked boxes, or inactivity should not constitute consent.” Furthermore, it is required that consent be given “for all processing activities carried out for the same or similar purposes. When processing has multiple purposes, consent must be given for all of them.” Finally, it establishes that “if the consent of the data subject is to be given following a request by electronic means, the request must be clear, concise, and not unnecessarily disrupt the use of the service for which it is provided.”

For its part, Article 12.1 of the aforementioned GDPR establishes, regarding the requirements that the information provided by the data controller to the data subjects must meet when requesting their consent, the following: “1. The data controller shall take appropriate measures to provide the data subject with all information indicated in Articles 13 and 14, as well as any communication in accordance with Articles 15 to 22 and 34 related to the processing, in a concise, transparent, intelligible, and easily accessible form, using clear and plain language, particularly any information specifically addressed to a child. The information shall be provided in writing or by other means, including, where appropriate, by electronic means. When requested by the data subject,

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The information may be provided verbally as long as the identity of the interested party is demonstrated by other means (...).

Articles 13 and 14 of the GDPR detail the information that must be provided to the interested party when the data is collected directly from them (art. 13), or through other means (art. 14). In any case, the obligation to inform the interested parties about the circumstances related to the processing of their data falls on the data controller: a) If the data is obtained directly from the interested party, the information must be made available at the time the data is requested, prior to collection or registration; and b) if it is not obtained from the interested party, they must be informed within one month from the time the personal data was obtained, or before or at the first communication with the interested party, or before the data (if applicable) has been communicated to other recipients.

In this case, there is a record of the change of the contact email address and the bank account domiciliation requested by a third party, specifically by the claimant's ex-partner, without the consent of the claiming party.

All of this, without their authorization or consent, considering that the regulations on the protection of

personal data have been violated.

In accordance with the evidence available in this initiation agreement of the sanctioning procedure, and without prejudice to what results from the instruction, it is considered that the known facts could constitute an infringement, attributable to FIBRA, for violation of Article 6.1 of the GDPR, since the data processing carried out, namely, the change of the contact email address and the bank account domiciliation, has been carried out without a legitimate basis.

IV

Classification of the infringement of Article 6.1 of the GDPR

If confirmed, the aforementioned infringement of Article 6.1 of the GDPR could imply the commission of the infringements classified in Article 83.5 of the GDPR, which under the heading "General conditions for the imposition of administrative fines" states:

"Violations of the following provisions shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 20,000,000 EUR or, in the case of an enterprise, an amount equivalent to 4% of the total annual global turnover of the previous financial year, opting for the higher amount:

a) the basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9; (...)"

In this regard, the LOPDGDD, in its Article 71 "Infringements" establishes that "Acts and behaviors referred to in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679, as well as those that are contrary to this organic law, constitute infringements."

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For the purposes of the statute of limitations, Article 72 "Infringements considered very serious" of the LOPDGDD indicates:

"1. Based on what is established in Article 83.5 of Regulation (EU) 2016/679, the following infringements are considered very serious and shall be subject to a three-year statute of limitations:

b) The processing of personal data without any of the conditions for legitimacy established in Article 6 of Regulation (EU) 2016/679. (...)"

V

Sanction for the infringement of Article 6.1 of the GDPR

For the purpose of deciding on the imposition of an administrative fine and its amount, in accordance with the evidence available at this moment in the initiation agreement of the sanctioning procedure, and without prejudice to what results from the instruction, it is appropriate to gradate the sanction to be imposed according to the following criteria established in Article 83.2 of the GDPR:

As aggravating factors:

- b) the intentionality or negligence in the infringement;

In this same sense, the Supreme Court has understood that there is negligence whenever a legal duty of care is disregarded, that is, when the infringer does not behave with the required diligence. And in assessing the degree of diligence, the professionalism or lack thereof of the subject must be especially weighed, and there is no doubt that, in the case now examined, when the activity of the appellant involves constant and abundant handling of personal data, it must insist on rigor and exquisite care to comply with the legal provisions in this regard. [Judgment of the National Court of 17/10/2007 (rec. 63/2006)]

As aggravating factors:

- b) The connection of the infringer's activity with the processing of personal data.

FIBRA is dedicated to providing telecommunications services by all types of means, whether wired, wireless, satellite, Wi-Fi, or any other means that allows it, including television, internet, data, fixed telephony services... therefore, in the exercise of its activity, it must have the consent and legitimacy in the processing of its clients' personal data.

Consequently, for the purpose of complying with the legally established requirements, the exercise of

this activity necessarily implies knowledge and application of the current regulations on the protection of personal data.

The balance of the circumstances contemplated in Article 83.2 of the GDPR and Article 76.2 of the LOPDGDD, regarding the infringement committed by violating what is established in Article 6.1 of the GDPR, allows for an initial sanction of €70,000 (SEVENTY THOUSAND EUROS).

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VI

If the infringement is confirmed, it may be agreed to impose on the responsible party the adoption of appropriate measures to align their actions with the regulations mentioned in this act, in accordance with the provisions of the aforementioned Article 58.2 d) of the GDPR, according to which each supervisory authority may "order the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, where appropriate, in a specific manner and within a specified period...". The imposition of this measure is compatible with the sanction consisting of an administrative fine, as provided for in Article 83.2 of the GDPR. It is noted that failure to comply with the possible order to adopt measures imposed by this body in the sanctioning resolution may be considered an administrative infringement in accordance with the provisions of the GDPR, classified as an infringement in its Articles 83.5 and 83.6, which may lead to the initiation of further administrative sanctioning proceedings.

Therefore, in light of the above, by the Director of the Spanish Agency for Data Protection,

IT IS AGREED:

FIRST: TO INITIATE SANCTIONING PROCEDURE against FIBRA ÓPTICA MÁLAGA, S.L. with NIF B90181801, for the alleged infringement of Article 6.1 of the GDPR, classified in Article 83.5 of the GDPR.

SECOND: TO APPOINT C.C.C. as the instructor and B.B.B. as the secretary, indicating that they may be challenged, if applicable, in accordance with the provisions of Articles 23 and 24 of Law 40/2015, of October 1, on the Legal Regime of the Public Sector (LRJSP).

THIRD: TO INCORPORATE into the sanctioning file, for evidentiary purposes, the complaint filed by the claimant and its documentation, as well as the documents obtained and generated by the General Subdirectorate for Data Inspection in the proceedings prior to the initiation of this sanctioning procedure.

FOURTH: THAT for the purposes provided in Article 64.2 b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the sanction that may correspond, without prejudice to what results from the instruction, would be:

- For the alleged infringement of Article 6.1 of the GDPR, classified in Article 83.5 of that regulation, an administrative fine of 70,000.00 euros.

FIFTH: TO NOTIFY this agreement to FIBRA ÓPTICA MÁLAGA, S.L. with NIF B90181801, granting a hearing period of ten working days for them to submit allegations and present any evidence they deem appropriate. In their written allegations, they must provide their NIF and the file number that appears in the heading of this document.

If they do not submit allegations to this initiation agreement within the stipulated period, it may be considered a proposal for resolution, as established in Article 64.2.f) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP).

In accordance with the provisions of Article 85 of the LPACAP, they may acknowledge their responsibility within the period granted for the formulation of allegations to this initiation agreement; this will entail a reduction of 20% of the sanction that may be imposed in this procedure. With the application of this reduction, the sanction would be set at 56,000.00 euros, resolving the procedure with the imposition of this sanction.

Similarly, they may, at any time prior to the resolution of this procedure, voluntarily pay the proposed

sanction, which will imply a reduction of 20% of its amount. With the application of this reduction, the sanction would be set at 56,000.00 euros, and its payment will imply the termination of the procedure, without prejudice to the imposition of the corresponding measures.

The reduction for the voluntary payment of the sanction is cumulative with the one corresponding to the acknowledgment of responsibility, provided that this acknowledgment of responsibility is made within the period granted to formulate allegations to the opening of the procedure. The voluntary payment of the amount referred to in the previous paragraph may be made at any time prior to the resolution. In this case, if both reductions were to apply, the amount of the sanction would be set at 42,000.00 euros.

In any case, the effectiveness of either of the two mentioned reductions will be conditioned upon the withdrawal or renunciation of any action or administrative appeal against the sanction.

In the event that they choose to proceed with the voluntary payment of any of the amounts indicated above (56,000.00 euros or 42,000.00 euros), they must make it effective by depositing it into account no. IBAN: ES00-0000-0000-0000-0000-0000 (BIC/SWIFT Code: CAIXESBBXXX) opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A., indicating in the concept the reference number of the procedure that appears in the heading of this document and the reason for the reduction of the amount to which they are adhering.

Additionally, they must send the proof of deposit to the General Subdirectorate for Inspection to continue with the procedure in accordance with the amount deposited.

The procedure will have a maximum duration of twelve months from the date of the initiation agreement. After this period, it will expire, and consequently, the file will be archived; in accordance with the provisions of Article 64 of the LOPDGDD.

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In compliance with Articles 14, 41, and 43 of the LPACAP, it is hereby notified that, henceforth, notifications sent to you will be carried out exclusively in electronic form, through the Single Enabled Electronic Address (dehu.redsara.es), and that, if you do not access them, your rejection will be recorded in the file, considering the procedure completed and continuing with the process. You are informed that you may identify an email address before this Agency to receive the notice of availability of notifications and that the lack of practice of this notice will not prevent the notification from being considered fully valid.

Finally, it is noted that according to the provisions of Article 112.1 of the LPACAP, there is no administrative appeal against this act.

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Director of the Spanish Agency for Data Protection

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SECOND: On March 15, 2024, the respondent has proceeded to pay the fine in the amount of 42,000 euros, making use of the two reductions provided for in the previously transcribed Initiation Agreement, which implies the acknowledgment of responsibility.

THIRD: The payment made, within the period granted to submit allegations regarding the opening of the procedure, entails the waiver of any action or administrative appeal against the fine and the acknowledgment of responsibility concerning the facts referred to in the Initiation Agreement.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and

guarantee of digital rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued in its development, and, to the extent that they do not contradict them, subsidiarily by the general rules on administrative procedures."

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II

Termination of the procedure

Article 85 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), under the heading "Termination in sanctioning procedures" provides as follows:

"1. Once a sanctioning procedure has been initiated, if the offender acknowledges their responsibility, the procedure may be resolved with the imposition of the appropriate sanction.

2. When the sanction is solely pecuniary or when a pecuniary sanction can be imposed along with a non-pecuniary sanction but the impropriety of the latter has been justified, voluntary payment by the presumed responsible party, at any time prior to the resolution, will imply the termination of the procedure, except regarding the restoration of the altered situation or the determination of compensation for damages caused by the commission of the infringement.

3. In both cases, when the sanction is solely pecuniary, the competent authority to resolve the procedure shall apply reductions of at least 20% on the amount of the proposed sanction, which shall be cumulative. The aforementioned reductions must be specified in the notification of initiation of the procedure, and their effectiveness shall be conditioned upon the withdrawal or waiver of any action or administrative appeal against the sanction. The percentage of reduction provided in this section may be increased by regulation."

Accordingly,

the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO DECLARE the termination of procedure EXP202209861, in accordance with the provisions of Article 85 of the LPACAP.

SECOND: TO NOTIFY this resolution to FIBRA ÓPTICA MÁLAGA, S.L.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative process as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the interested parties may file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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